

Court No. - 37

Case :- WRIT - C No. - 54998 of 2012

Petitioner :- Kunwar Pal

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Naveen Kumar Srivastava, Parvesh Kumar Pandey

Respondent Counsel :- C.S.C., A.L. Yadav

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhya, J.

Shri A.L. Yadav appearing for the respondent nos. 2 and 3 is allowed ten days time to obtain instruction.

Put up as fresh on 31/10/2012.

Order Date :- 17.10.2012

SB

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Petitioner Counsel :- Naveen Kumar Srivastava, Parvesh Kumar Pandey

Respondent Counsel :- C.S.C., A.L. Yadav

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhyay, J.

Heard learned counsel for the petitioner and Sri A.L. Yadav, learned counsel appearing for the Corporation.

By means of this writ petition the petitioner has prayed for a mandamus directing the respondents not to take any action against the petitioner without giving any notice or recovery certificate.

The petitioner's case in this writ petition is that although the electric connection for tube well was sanctioned but the electricity line was never energized whereas the bill has been sent and the recovery proceeding has been issued.

We are of the view that if the petitioner was aggrieved by any electricity bill due to the petitioner, the remedy of the petitioner was to file complaint under 6.5 of the U.P. Electricity Supply Code, 2005

There being statutory remedy available to the petitioner, we are of the view that the writ petition cannot be entertained. The petitioner may avail statutory remedy as provided under the U.P. Electricity Supply Code, 2005.

With the aforesaid observation, the writ petition is dismissed.

Order Date :- 31.10.2012

SKM